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Case Number: 25NWCV01127 Hearing Date: June 25, 2026 Dept: L

Defendants Kaiser Foundation

Hospitals and Southern California Permanente Medical Group's Demurrer to the First Amended Complaint is **OVERRULED** as to the first, third, fourth, and fifth causes of action and is **SUSTAINED** with 30 days leave to amend as to the second cause of action.

Defendants' Motion to Strike

Punitive Damages is **GRANTED**.

Defendants to give notice.

Background

This is a sexual assault action.

On March 24, 2025, Plaintiff Jane Doe ("Plaintiff") filed this action against Defendants Kaiser Permanente International, James P. Zalez, M.D. and Does 1 to 50. On June 27, 2025, Plaintiff amended the Complaint to identify Doe 1 as Southern California Permanente Medical Group and Doe 2 as Kaiser Foundation Hospitals.

On December 4, 2025, Plaintiff filed the First Amended Complaint (FAC) against Kaiser Foundation International, James P. Zalez, M.D., Nadia Pungul, R.N., (collectively, "Defendants") and Does 1 to 60. The FAC alleges as follows: On June 26, 2024, Plaintiff visited Defendants' facility located at 9333 Imperial Hwy., Downey, CA 90242 for a medical inspection of a lump on her labia. Defendants "failed to use reasonable care in their examination of Plaintiff's vaginal area by failing to inform Plaintiff of their intent to manually inspect and digitally penetrate her

vagina,” which was done “without her consent and without warning.” (Complaint, ¶¶ 12, 19.) Defendants also “failed to provide any privacy to allow Plaintiff to disrobe and did not provide Plaintiff with a medical gown.” (Complaint, ¶ 13.) The FAC alleging the following causes of action: 1) Negligence, 2) Negligent Hiring, Retention, Training and Supervision, 3) Intentional Infliction of Emotional Distress, 4) Sexual Battery (Civil Code 1708.5.5), and 5) Sexual Harassment (Civil Code 51.9).

On February 19, 2026, the Court granted Defendant James P. Zalez, M.D.’s Motion to Strike Punitive damages. (2/19/26 Minute Order.)

On January 6, 2026, Defendants Kaiser Foundation Hospitals and Southern California Permanente Medical Group, erroneously sued as “Kaiser Foundation International,” (collectively, “Defendants”) filed the instant Demurrer and Motion to Strike the FAC.

On May 27, 2026, Plaintiff filed an untimely opposition. On May 29, 2026, Defendants filed a reply.

On June 2, 2026, this matter was continued to today’s date. The Court ordered that 1) the parties must meet and confer, and 2) Plaintiff must seek authorization from the Court to proceed under a pseudonym. (6/2/26 Minute Order.)

The Court now considers the Demurrer and Motion to Strike, untimely opposition, and reply in its discretion.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the

reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

On December 19, 2025, Defense counsel emailed Plaintiff’s counsel regarding its intent to file a demurrer. (Reid Decl, ¶ 9, Exh. A.) Defense counsel did not receive a response to the meet and confer letter. (Reid Decl., ¶ 10.)

The Court finds the meet and confer requirement has not been met, as there is no indication the parties met and conferred “in person, by telephone, or by video conference.” Nevertheless, the Court will address the merits of the Demurrer and Motion to Strike in interests of judicial efficiency.

Discussion

Defendants demur to all causes of action in the FAC.

Liability as to First, Third, Fourth, and Fifth Causes of Action

Defendants demur to the first, third, fourth, and fifth causes of action on grounds that Defendants are not liable for the acts of Defendant James P. Zalez, M.D. based on his

employment (hereinafter “Dr. Zalez”). Specifically, Defendants argue that 1) Dr. Zalez was not acting in within the course of his employment with Defendants when he allegedly sexually assaulted Plaintiff, and 2) the allegations are insufficient to show that Defendants ratified Dr. Zalez’s conduct.

i.

Scope of Employment

Defendants argue that, even accepting the allegation that Dr. Zalez was an employee of Defendants, the FAC fails to plead that Dr. Zalez was acting within the course of his employment with Defendants when he allegedly sexually assaulted Plaintiff. Defendants primarily cite to *Lisa M v. Henry Mayo Newhall Memorial Hospital* (“*Lisa M.*”) (1995) 12 Cal. 4th 291, 296 in arguing that sexual misconduct falls outside of the course and scope of Dr. Zalez’s employment as a matter of law, such that his conduct cannot be imputed to Defendants. Defendants argue that, similar to *Lisa M.*, “[Dr. Zalez] simply took advantage of solitude with a patient to commit an assault for reasons unrelated to his work.” (Dem., 15:4-5.) Defendants argue that they should not be held vicariously liable for the actions of Dr. Zalez merely because the conditions of the examination made the alleged assault possible.

In opposition, Plaintiff

argues that the Dr. Zalez’s alleged sexual misconduct was a foreseeable outgrowth of his employment duties. The FAC pleads that Plaintiff sought treatment for a visual-only inspection of a lump on her labia. (FAC, ¶ 11.) Dr. Zalez failed to inform Plaintiff that he would manually inspect and digitally penetrate her vagina. (FAC, ¶ 12.) Dr. Zalez exceeded the scope of Plaintiff’s informed consent. (FAC, ¶ 14.) Plaintiff asserts that “[t]here is a causal nexus between Dr. Zalez’s job duties and the tort committed since Dr. Zalez’s job duties include some degree of physical and sexual contact.” (Opp., 11:1-2.) Plaintiff asserts that *Lady M.* is inapplicable, because there, an ultrasound technician sexually abused the plaintiff. (*Lisa M.*, supra, 12 Cal.4th at p. 295.) In that case, the ultrasound examination did not require inspection of the patient’s private parts. Here, the examination necessarily required such inspection, and invited the possibility that there would be a non-consensual touching.

“The rule of respondeat

superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (*Lisa*

M., supra, 12 Cal.4th at p. 296, citation omitted.) “Equally well established. . . is the principle that an employee’s willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.” (Id. at pp. 296-297.) “While the employee . . . need not have intended to further the employer’s interests, the employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee’s work.” (Id. at p. 297.) “[T]he incident leading to injury must be an ‘outgrowth’ of the employment; the risk of tortious injury must be ‘inherent in the working environment’ or ‘typical of or broadly incidental to the enterprise [the employer] has undertaken.’” (Id. at p. 298, citations omitted.) “California courts have also asked whether the tort was, in a general way, foreseeable from the employee’s duties. . . . The employment, in other words, must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought.” (Id. at p. 299.) The determination of whether an employee was acting within the scope of their employment is a question of fact to be decided by a jury. (Ibid.) However, when the facts are undisputed, it becomes a question of law. (Ibid.)

Here, the FAC alleges that “JAMES P. ZALEZ, M.D. was operating the subject medical facility with the express or implied authority and permission of [Defendants] and within the course and scope of their agency or employment with [Defendants].” (FAC, ¶ 3.) Further, the FAC alleges that each Defendant was acting within the scope of its authority and employment with co-Defendants.” (FAC, ¶¶ 9-10.) The first cause of action alleges that “[i]t was foreseeable to Defendants” that “Plaintiff would suffer from the type of harm described herein as a result of [Dr. Zalez’s] acts and omissions.” (FAC, ¶ 1.) The third, fourth, and fifth causes of action allege that Dr. Zalez’s conduct was carried out in “the course and scope” of their agency/employment relationship with Defendants. (FAC, ¶¶ 51, 58, 63.)

Accepting the allegations as true, the Court finds that it is inappropriate at this stage to determine as a matter of law that Dr. Zalez was not acting within the scope of his employment with Defendants. The Court finds that the FAC, read as whole, supports a reasonable inference that Dr. Zalez’s alleged sexual assault was a foreseeable outgrowth of his employment. The digital penetration of Plaintiff’s vagina was conducted as a part of the examination of Plaintiff’s condition, although done

without the consent of Plaintiff. The Court is persuaded that there is a causal nexus between Dr. Zalez's employment and the alleged sexual assault such that Defendants could be vicariously liable.

The Court finds that the circumstances of Lisa M. are slightly distinguishable. There, the Supreme Court held that, just because the defendant's "employment as an ultrasound technician provided the opportunity for him to meet plaintiff and to be alone with her in circumstances making the assault possible," did not necessarily mean that the hospital should be held vicariously liable. (Lisa M., supra, 12 Cal.4th at p. 299-306.) Here, the subject examination did not only provide the conditions for an assault to take place—i.e., that the patient was isolated and touching was involved—as in Lisa M. Rather, the subject examination necessarily required inspection of Plaintiff's private areas and potential touching. The Court finds that, unlike in Lisa M., it was foreseeable to Defendants that the vaginal examination might lead to non-consensual touching of Plaintiff's private parts.

Thus, the Demurrer to the first, third, fourth, and fifth causes of action are **OVERRULED** on these grounds.

ii.

Ratification

Defendants argue that the FAC fails to plead specific material facts that Defendants ratified Dr. Zalez's conduct. Specifically, the FAC "alleges no material facts regarding any alleged prior complaints against Dr. Zalez, or how these Defendants supposedly had any knowledge of these prior complaints." (Dem., 16:15-16.)

In opposition, Plaintiff argues that the ratification is adequately alleged. The FAC alleges that Defendants knew or should have known of Dr. Zalez's propensity to commit sexual misconduct. (FAC, ¶¶ 10, 27, 40-41, 43, 71.) Further, the FAC alleges that, despite having knowledge of Dr. Zalez's sexual abuse, Defendants did nothing to investigate. (FAC, ¶ 71.) Such allegations are sufficient to show ratification.

"As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the

employer either authorized the tortious act or subsequently ratified an originally unauthorized tort. [Citations.] The failure to discharge an employee who has committed misconduct may be evidence of ratification. [Citations.] The theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery. [Citations.] Whether an employer has ratified an employee's conduct is generally a factual question. [Citation.]" (C.R. v. Tenet Healthcare Corp. ("C.R.") (2009) 169 Cal.App.4th 1094, 1110, as modified on denial of reh'g (Feb. 3, 2009), citations omitted.)

Here, the FAC alleges that all Defendants ratified the acts of the co-Defendants. (FAC, ¶¶ 9-10.) The fifth cause of action for sexual harassment alleges that, "[d]espite [Defendants'] actual or constructive knowledge of the sexual abuse and harassment against the Plaintiff, [Defendants] did nothing to investigate, supervise, or monitor [Dr. Zalez] to ensure the safety and wellbeing of the patients in its care, custody, and control." (FAC, ¶ 71.)

The Court agrees with Defendants that the FAC fails to allege specifically how Defendants were put on actual or constructive notice of Dr. Zalez's alleged misconduct, such that Defendants should have investigated. For example, there are no allegations that Plaintiff made a complaint to Defendants. Thus, the Court finds that the FAC fails to allege ratification such that Defendants are vicariously liable.

However, the Court may not sustain the Demurrer to ratification allegations in the fifth cause of action and other causes of action where the Demurrer is overruled as to those causes of action based on another theory (respondeat superior). (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1167 ["Ordinarily, a general demurrer may not be sustained. . .as to a portion of a cause of action."], disapproved of on other grounds by Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905.)

Second Cause of Action – Negligent Hiring, Retention, Training, and

Supervision

The elements of a cause of

action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

Defendants argue that the FAC alleges in the conclusory fashion that Defendants had knowledge of Dr. Zalez's unfitness. The FAC makes no specific allegation supporting such knowledge.

In opposition, Plaintiff argues that the allegations are sufficient. The FAC alleges that Defendants negligently "interviewed, hired, entrusted, trained, educated, supervised, retained, evaluated, reviewed, and/or disciplined ...[Dr. Zalez]." (FAC, ¶¶ 36-37.) Further, the FAC alleges that Dr. Zalez was "unfit and/or incompetent to perform the work for which they were hired to do by [Defendants], including, but not limited to, providing medical treatment and services to Plaintiff." (FAC, ¶ 39.) Defendants knew or should have known of Dr. Zalez's "unprofessional and unlawful propensities, including but not limited to their inability to recognize and understand patient complaints, provide privacy, obtain consent for medical treatment, recognize and prevent workplace sexual assault of patients" and "had reasons to believe" that Dr. Zalez was unfit for employment. (FAC, ¶¶ 40-43.) Dr. Zalez's unfitness proximately caused Plaintiff's injuries. (FAC, ¶¶ 44.)

The Court finds that the FAC fails to allege, with specific facts, that Defendants knew of Dr. Zalez's unfitness and had reason to believe undue risk of harm would exist because of the employment, such that he was negligently hired, trained, retained, or supervised. The Court agrees with Defendants that the allegations are conclusory as to this element. Neither are there any specific allegations demonstrating how Defendants negligently trained Dr. Zalez. For example, there are no allegations that Defendants had a duty to provide certain training and failed to do so.

Accordingly, the Demurrer to the second cause of action is SUSTAINED with 30 days leave to amend.

Third Cause of Action – Intentional Infliction of
Emotional Distress (IIED)

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Defendants argue that the FAC fails to state a cause of action for IIED. Specifically, there are no allegations that Defendants intended to cause severe emotional distress and that they engaged in extreme and outrageous conduct.

For reasons stated above, the Court finds that the FAC adequately alleges that Defendants are vicariously liable for the IIED committed by Dr. Zalez. The Court has also previously overruled Dr. Zalez's Demurrer to the IIED cause of action in the Complaint, finding that his conduct was extreme and outrageous. (11/4/25 Order.)

Accordingly, the Demurrer to the third cause of action is OVERRULED.

Uncertainty

Defendants demur to the entire FAC on grounds that it is uncertain and ambiguous. Specifically, the FAC fails to allege Plaintiff's true identity, and Plaintiff has not requested the Court's approval to proceed using a pseudonym.

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of

Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

The Court finds that this issue is moot, as Plaintiff has then since filed a Motion to Proceed under a Pseudonym. The Court finds that the FAC is not so ambiguous that Defendants cannot understand what it being alleged against them. Discovery procedures and protective orders may be utilized to address any uncertainties.

Accordingly, the Demurrer to the entire FAC based on uncertainty grounds is OVERRULED.

Motion to Strike

Code of Civil Procedure, section 436 permits trial courts to strike out any irrelevant, false, or improper matter inserted in a pleading:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.)

Defendants move to strike paragraphs 80 to 84 in the “Prayer for Punitive Damages” section and paragraph 4 in the “Prayer for Relief.” Defendants argue that the FAC fails to meet the requirements to impose punitive damages on Defendants, as employer corporations, under Civil Code section 3294, subdivision (b).

Plaintiff does not oppose Defendants’ Motion to Strike in light of the Court’s ruling granting Dr. Zalez’s Motion to Strike pursuant to Section 425.13, subdivision (a) of Code of Civil Procedure [requiring a court order

prior to seeking punitive damages against a medical provider]. (2/19/26 Minute Order.) Plaintiff represents that she will gather evidence and will later amend the FAC to seek punitive damages, as evidence permits.

Accordingly, Defendants' Motion to Strike Punitive Damages is GRANTED.